From:
Leo T. Bergeron
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September 12, 2012

To:
Bruce Croucher, High Priest of Demeter
Dan Bascom, Priest Archon
Jim Owens, Priest Annalist
Betsy Huber, Chairman, Executive Committee
Members of the Executive Committee of the National Grange
Jimmy Gentry, Overseer

National Grange Patrons of Husbandry
1616 H Street, NW
Washington, DC 20006

Re: **COMPLAINT AGAINST NATIONAL GRANGE MASTER ED LUTTRELL**

COMPLAINANTS:
Leo T. Bergeron, Greenhorn Grange #384, Past Master, California State Grange, Lead Complainant, and
Atascadero Grange #563
Aromas Grange #361
Butte County Pomona Grange #16
Chico Grange #486
Durham Grange #460
El Paso de Robles Grange #555
Estrella Grange #488
Greenhorn Grange #384
Laytonville Grange #726
Marin Grange #848
Marshall Grange #451
North Bay Pomona Grange #53
Petaluma Grange #851
Pleasant Valley Grange #675
Santa Cruz Live Oak Grange #503
Sebastopol Grange #306
Springfield Grange #523
Thermalito Grange #729
Yankee Hill Grange #735
Jon Luvaas, Chico Grange #486, California State Grange Executive Committee
Damian Parr, Santa Cruz Live Oak Grange #503, CSG Executive Committee
Buzz Chernoff, Marshall Grange #451, CSG Executive Committee
Bob Alvarez, Yankee Grange Hill #735, CSG Gatekeeper
Sylvia Sloan, Durham Grange #460, CSG Pomona
Nancy Alvarez, Yankee Hill Grange, #735, past CSG Ceres
Cheri Bunker, Master, Butte County Pomona #16, past CSG Secretary
Jan Saxton, Master, Aromas Grange #361
Lanny Cotler, Little Lake Grange # 670, CSG Deputy Master
Daniel Feldman, Master, Santa Cruz Pomona #54, CSG Deputy Master

Versus

RESPONDENT:
Ed Luttrell, National Grange Master

STATEMENT: By his continuous interference with the lawful operations of the California State Grange (CSG), a California Corporation, its Executive Committee and Master, the Complainants allege that Edward Luttrell, Master of the National Grange (National Grange Master), on numerous occasions violated his Oath of Obligation, Oath of Installation and Instructions, the Constitution of the Order of Patrons of Husbandry, the Declaration of Purpose of the National Grange of the Order of Patrons of Husbandry, the By-Laws of the National Grange of the Order of Patrons of Husbandry, the Digest of Laws of the CSG, Laws of our State and Nation, and Robert's Rules of Parliamentary Procedure. In addition, the Complainants allege that the National Grange Master has failed to carry out the responsibilities of his office, abused his authority, and disregarded the fundamental principles of the Order.

CHARGE 1: AIDED AND ABETTED THE CONSPIRACY TO REMOVE THE CSG MASTER

With no authority granted by **the *Digest of Laws of the National Grange***, beginning in August 2011 or earlier, the National Grange Master has aided and abetted the conspiracy to remove the duly elected CSG Master from office by encouraging, empowering and supporting a dissident minority group of CSG officers,

In violation of the National Master's ***Oath of Obligation****, "I will not knowingly wrong or defraud a Brother or Sister of the Order or allow it to be done by another if within my power to prevent it. I will endeavor to be a true and faithful Patron of Husbandry, perform the duties enjoined in this Order, and aid others in the performance of the same. Should I knowingly or willfully violate this pledge, I will invoke upon myself suspension or expulsion from the Order,"* and

In violation of the ***Declaration of Purposes of the Digest of the National Grange, sections 2.1.2, 2.2.3 and 2.3.2, and 2.6.1*** *"We heartily endorse the motto, "In essentials, unity; in non-essentials, liberty; in all things, charity…. We propose meeting together, talking together, working together and, in general, acting together for our mutual protection and advancement. We shall constantly strive to secure harmony, good will, and brotherhood, and to make our Order perpetual. We shall earnestly endeavor to suppress personal, local, sectional, and national prejudices, all unhealthy rivalry and all selfish ambition. Faithful adherence to these principles will ensure our mental, moral, social and material advancement… We are opposed to such spirit and management of any corporation or enterprise which tends to oppress people. We long to see antagonism between capital and labor removed by common consent, and by statesmanship worthy of an enlightened people… Our Fraternity, being agriculturally based, family oriented and dedicated to the pure principles of equality under Constitutional Law, we appeal to all good citizens for mutual cooperation and assistance toward reform that we may remove from our midst the last vestige of inequity and corruption. We believe that harmony, equitable compromise and earnest cooperation are essential to future success."*

Beginning in August, 2011 the National Grange Master has, through actions, inactions and with bias, sought to interfere, influence and command the lawful affairs of the CSG Executive Committee, Master, and members.

In August, 2011 during the Western Leadership Conference in Boise, Idaho, the National Master engaged in a conversation with CSG Overseer Martha Stefenoni and CSG Secretary Leslie Parker that was derogatory toward the CSG Master. Although the CSG Master was in attendance at the conference he was not advised, informed or given an opportunity to respond.

This was in direct violation of the ***Digest of Laws of the National Grange section 4.14.1****, "A copy of all official communications sent to any Grange or Grange member within the jurisdiction of a State Grange by the Officers, Directors, or employees of the National Grange, shall be sent to the Master of the State Grange having jurisdiction"* and violated the Respondent's ***Oath of Obligation***.

Early in October, 2011, the National Grange Master communicated and directed employees of the CSG staff to provide him with documents and information from the offices of the CSG, as evidenced by an email from Office Manager Amy Self to the National Grange Master, dated October 8, 2011, reporting to him, while acknowledging the inappropriateness of doing so:

"See attached report that I wrote on 10-5-11. Please understand the pressure that I am under presently. I feel that some of the items on this report should be directed to our State Executive Committee. At this time, I am afraid do send it to them. I know this is so much to take in, so please do not hesitate to call me anytime."

In violation of the ***Digest of Laws of the National Grange section 4.14.1****,*

The National Grange Master's illicit communications and directions to employees of the CSG are absolutely unacceptable. These unapproved actions were completely unknown to their employers and the CSG Master and violated Grange principles and laws, the laws of the State of California, and common sense. Without any authority, the National Grange Master put at risk the employees and the California State Grange. These actions, conducted in secrecy, demonstrate the National Grange Master's complicity in the conspiracy to remove the CSG Master from office.

On October 11, 2011, one day before the CSG Convention, the National Grange Master made a surprise visit to the offices of the CSG located in Sacramento, California. The purpose of his visit was to interrogate CSG Master Bob McFarland regarding accusations against him made by CSG Overseer Martha Stefenoni.

The National Grange Master showed Master McFarland a letter listing accusations against him. The National Grange Master told Master McFarland that he had two choices to avoid immediate suspension: prove on-the spot that he was innocent, or resign his office.

During the interrogation of Master McFarland, the National Master stated: "You've already lied to me once," but did not explain his statement. The National Master then said: "I'm a Christian." Master McFarland understood the National Master to imply that his morals were above Master McFarland's.

In violation of the National Master's ***Oath of Installation****, "I will not take advantage of the position to bias, in any way, either directly or indirectly, the political or religious opinions of any member of the Order*,"

And in violation of the ***Declaration of Purposes of the Digest of the National Grange, section 1.12.1****, "Denominational religious or partisan political matters shall not be the subject of discussions in the work of the Order, and no religious or political tests for membership shall be applied."*

We find this conduct and intimidation by the National Master unacceptable, an abuse of his authority, and a violation of Grange law and principles.

The National Grange Master suggested and Master McFarland agreed that the suspension would be deferred, pending the results of an investigation to be conducted by the CSG Executive Committee, and the National Grange Master ordered the investigation.

For more than three months, the CSG Executive Committee diligently investigated the accusations. On January 24, 2012 the CSG Executive Committee concluded their investigations and sent to the National Grange Master the *"Final Report from CSG Executive Committee"*. The Executive Committee concluded: *"… we found no Grange law violations."*

However, on January 25, 2012, CSG Overseer Martha Stefenoni drafted what she called the *"minority report"*, contradicting the *"Final Report from CSG Executive Committee"* and sent it to The National Grange Master, signed by herself, Inger Bevans and Shirley Baker as *"CA State Grange Exec. Comm. Mbrs"*.

Their *"minority report"* was drafted, signed and sent without the knowledge or approval of the CSG Executive Committee, in violation of the ***National Digest, Chapter 13 Code Of Parliamentary Law, Reports Of Committees, 13.1.2*** and ***Robert's Rules of Order, Newly Revised 11th edition,*** *Pages 527 – 528*.

The CSG Executive Committee was not informed of the *"minority report"* until January 30, 2012, five days after it was sent to The National Grange Master,

Never-the-less, the National Grange Master allowed, accepted and acted upon the *"minority report"* and sent a defamatory letter of reprimand to the CSG Master on February 7, 2012. The letter was confidential and personal in nature, and sent only to the CSG Master and Executive Committee. However, it was subsequently illegally released and distributed to Grange members throughout the state. We hold the National Grange Master responsible.

In an insult to the integrity of the CSG Executive Committee, the National Master's February 7 letter rejected the findings of their three month investigation.

In his letter dated February 7, 2012, sent to the membership of the CSG, the National Master violated the ***Digest of Laws of the National Grange section 4.14.1****, "A copy of all official communications sent to any Grange or Grange member within the jurisdiction of a State Grange by the Officers, Directors, or employees of the National Grange, shall be sent to the Master of the State Grange having jurisdiction.*

In his letter dated February 7, 2012, sent to the membership of the CSG, the National Master wronged and defrauded the duly elected members of the CSG Executive Committee. Apparently, not getting a guilty finding against the CSG Master that he wanted, the National Master criticized the *"Final Report from CSG Executive Committee"*, stating "*The reports that I received from the Chairman of the Executive Committee following your State Grange Session seemed to indicate an attitude of "all is well" rather than an in-depth search for the truth,"*

In violation of the National Master's ***Oath of Obligation****, "I will not knowingly wrong or defraud a Brother or Sister of the Order or allow it to be done by another if within my power to prevent it. Should I knowingly or willfully violate this pledge, I will invoke upon myself suspension or expulsion from the Order."*

In an e-mail dated February 27, 2012 to a CSG member, the CSG Secretary implicated the National Master's in the conspiracy to remove the duly elected CSG Master from office, stating *"even with all the reports and such that have been sent to Master Ed, he doesn't have enough to really DO anything [to the CSG Master]… We have been told that the National Master needs to hear from Members. Sending it by email is fine: GrangeLeader@gmail.com."* Parker asked that the member send complaints against the CSG Master to the National Grange Master.

In an e-mail dated February 29, 2012 to three CSG members, the CSG Secretary implicated herself, the National Grange Master and the CSG Overseer in the conspiracy to remove the duly elected CSG Master from office, stating *"Martha [CSG Overseer] says she talked to Ed [National Grange Master] this morning. Ed said to keep putting pressure on Mr. McFarland for accountability and keep getting the members involved."*

On July 3, 2012, while the CSG Master was on suspension, the National Master took the opportunity to send another unauthorized email/letter to the members of the CSG. The letter further defamed the CSG Master, as well as members of the California State Grange. The letter was biased and full of inaccuracies, misleading statements and unfounded accusations. The National Grange Master's July 3, 2012 email/letter attempted to sway the opinions of the members of the CSG.

On July 18, 2012 at a regular meeting of the Orangevale Grange, CSG Secretary Leslie Parker announced her advance knowledge that the National Grange Master was bringing "new charges against McFarland" and that, this time, the CSG Master would be "suspended for the remainder of his term". The National Grange Master brought new charges against the CSG Master, dated August 1, 2012. How did the CSG Secretary know two weeks in advance that the charges would be brought? Only the National Grange Master himself would have known and communicated that information,

In violation of the ***Digest of Laws of the National Grange 4.14.1****, A copy of all official communications sent to any Grange or Grange member within the jurisdiction of a State Grange by the Officers, Directors, or employees of the National Grange, shall be sent to the Master of the State Grange having jurisdiction.*

We hold the National Master responsible for repeated and flagrant abuses of his authority, which include, but are not limited to, 1) attempting to influence the members of the California State Grange, 2) the inappropriate and unapproved use of the CSG mailing list, and 3) aiding and abetting the conspiracy to remove the duly elected CSG Master from office.

CHARGE 2: ABUSE OF AUTHORITY AND INTERFERENCE WITH THE LAWFUL PROCEEDINGS OF THE CALIFORNIA STATE GRANGE

The National Grange Master's frequent and deliberate interference has obstructed the democratic process and protocols of the CSG Executive Committee and has been the primary cause of divisiveness and dysfunction. Enabled and empowered by the National Grange Master, a minority group of CSG Executive Committee members have learned that if they don't get their way, they can appeal directly to the National Grange Master, and he will reverse the decision of the majority to accommodate them.

With no authority granted by the ***Digest of Laws of the National Grange***, beginning in August 2011 or earlier, the National Grange Master routinely communicated directly with officers of the California State Grange, including the CSG Overseer and selected members of the Executive Committee, regarding the business of the CSG, in violation of the ***Digest of Laws of the National Grange section 4.14.1****, "A copy of all official communications sent to any Grange or Grange member within the jurisdiction of a State Grange by the Officers, Directors, or employees of the National Grange, shall be sent to the Master of the State Grange having jurisdiction."*

In August, 2011, at the Western Leadership Conference in Boise, Idaho, the National Grange Master met with CSG Overseer Martha Stefenoni and CSG Secretary Leslie Parker to criticize the CSG Master. The CSG Master and CSG Executive Committee were never consulted or advised.

On October 5, 2011, CSG Overseer Martha Stefenoni sent a letter to the National Grange Master, criticizing the CSG Master, stating: *"Unfortunately, this review of these new Grange charters has given me reason to question their validity as well as the honesty and integrity of the person(s) involved…"* The CSG Master was never consulted or advised.

On October 12, 2011, the National Grange Master empowered and directed CSG Overseer Martha Stefenoni and CSG Executive Committee Chair Shirley Baker to take charge of qualifying the delegates at the CSG Annual Convention. The CSG Master was never consulted or advised.

During the 2011 CSG Annual Convention, the National Grange Master was in continual communication via telephone with CSG Overseer Martha Stefenoni and CSG Executive Committee Chair Shirley Baker, and directed their actions, which included 1) to segregate, interrogate and eliminate a group of 20–22 credentialed delegates representing Granges, and 2) to demand that the CSG Master declare a motion from the floor of the CSG 2011 Convention "out of order" and 3) warn the CSG Master that if he did not admit error and call the motion out of order, he would be "immediately suspended by the National Master."

On October 11, 2011, the National Grange Master directed the CSG Executive Committee to investigate accusations brought by CSG Overseer Martha Stefenoni against the CSG Master. The "*Final Report from CSG Executive Committee"* found no evidence of bylaws violations. However, apparently unhappy with the results, the National Grange Master criticized the report, stating *"The reports that I received from the Chairman of the Executive Committee following your State Grange Session seemed to indicate an attitude of "all is well" rather than an in-depth search for the truth."*

On January 25, 2012, CSG Overseer Martha Stefenoni drafted what she called the *"minority report"*, and sent it to Luttrell, signed by herself, Inger Bevans and Shirley Baker as *"CA State Grange Exec. Comm. Mbrs"*. Their *"minority report"* was secretly drafted, signed and sent without the knowledge or approval of the CSG Executive Committee or CSG Master.

The National Grange Master allowed, accepted and acted upon the *"minority report*",

In violation of the ***Digest of Laws of the National Grange 13.1.2****, "If there is a minority report of the committee, it shall be read before the majority report is acted upon. In order to bring the minority report properly before the Grange, a motion must be made to substitute the minority report for the majority report. If the motion prevails, the minority report become the report of the committee and is then acted upon. If the motion to substitute is lost, the majority report will then be considered."*

And ***Robert's Rules of Order****, "Newly Revised 11th edition – Pages 527 – 528 Formal Expression Of Minority View (Minority Report), … the formal presentation of a minority report is a privilege that the assembly may accord, not a matter of right… a majority vote is required to receive a minority report. The question is undebatable."*

CHARGE 3: PREVENTED THE SEATING OF DELEGATES AT THE 2011 CSG CONVENTION

With no authority granted by the ***Digest of Laws of the National Grange***, and without notifying the CSG Master, in violation of the ***Digest of Laws of the National Grange 4.14.1*** "*A copy of all official communications sent to any Grange or Grange member within the jurisdiction of a State Grange by the Officers, Directors, or employees of the National Grange, shall be sent to the Master of the State Grange having jurisdiction,"*

And without reporting or following the CSG Master's advice and guidance in violation of the ***Digest of Laws of the National Grange 9.2.3*** *"It is the responsibility of the officers and directors of the National Grange and their representative upon entering a state on Grange business to report at once to the Master of the State Grange having jurisdiction and follow the advice and guidance of said Master in performing their Grange duties,"*

The National Grange Master communicated with, directed and gave authority to CSG Overseer Martha Stefenoni and CSG Executive Committee Chair Shirley Baker to segregate, interrogate and eliminate a group of 20–22 credentialed delegates representing Granges at the 2011 CSG Convention, in violation of the ***Digest of Laws of the National Grange 4.6.9*** *"State Granges – State Granges are delegate bodies and shall be composed of two classes of members who are Fourth Degree members in good standing, namely: (A) Voting Members (Delegates) - Masters or alternates and their spouses, of active Subordinate and Pomona Granges within the jurisdiction of a State Grange shall be delegates to the Annual Meeting of a State Grange with the right to vote unless otherwise provided for in the By-Laws of a State Grange,"*

And in violation of the ***CSG Bylaws, Article XIII, section 13.5*** *"Credentials – Every Grange who shall send representatives to any State Grange meeting must certify to the State Grange, on forms provided, who shall be its accredited representatives. Such representatives may be required to furnish identification that will attest to his or her identity,"*

And in violation of the ***Digest of Laws of the National Grange section 10.1.1*** *"The National Grange of the Order of Patrons of Husbandry of the United States desires to maintain the most cordial relations of fraternity and goodwill with all members wheresoever located, but all business relations belong to the individual membership of these organizations, and their action will be governed by such rules and regulations as their interests will dictate, provided they are in compliance with the Constitution, By-Laws and Laws of the National Grange."*

At the direction of the National Grange Master, these actions discriminated against, wronged and defrauded delegates of the CSG, resulting in chaos, disharmony and division at our 2011 State Convention, in violation of the National Grange Master's ***Oath of Obligation*** *"I will conform to and abide by the laws of my State and Nation, and the Constitution, rules and regulations of the Grange at all levels. I will never propose for membership in the Order nor sanction the admission of anyone I have reason to believe an improper person, nor will I oppose the admission of anyone solely on the grounds of personal prejudice. I will not knowingly wrong or defraud a Brother or Sister of the Order or allow it to be done by another if within my power to prevent it. I will endeavor to be a true and faithful Patron of Husbandry, perform the duties enjoined in this Order, and aid others in the performance of the same. Should I knowingly or willfully violate this pledge, I will invoke upon myself suspension or expulsion from the Order."*

And in violation of the National Grange Master's ***Oath of Installation and Instructions*** "*I will perform all the duties appertaining to the office, as far as in my power… I will support the Constitution and By-Laws of the National Grange… and I will inculcate a strict obedience to all laws and edicts emanating from the proper authority. I will not take advantage of the position to bias, in any way, either directly or indirectly, the political or religious opinions of any member of the Order."*

"Instructions: You should be foremost in advocating the principles and carrying out the objects of our Order. To you all connected with your Grange will look for example; and not these only, but those outside the Gate will diligently scrutinize each act. Let me caution you, that you keep the eye of the mind open among your members…. A judicious Master will use due care that no time is lost in useless labor."

CHARGE 4: DELAYING APPROVAL OF CHARTER APPLICATIONS

The National Grange Master deliberately and unreasonably delayed the issuance of charters for six new or re-organized Granges in California, in violation of his ***Oath of Obligation***, *"I will conform to and abide by the laws of my State and Nation, and the Constitution, rules and regulations of the Grange at al levels… nor will I oppose the admission of anyone solely on the grounds of personal prejudice. I will not knowingly wrong or defraud a Brother or Sister of the Order or allow it to be done by another if within my power to prevent it. I will endeavor to be a true and faithful Patron of Husbandry, perform the duties enjoined in this Order, and aid others in the performance of the same,"*

And in violation of his ***Oath of Installation*** *"I will perform all the duties appertaining to the office."*

And in violation of the ***Digest of the National Grange, Charters, 4.3.2 (B)***, *"When the Master of the National Grange determines that the organization of a Junior, Subordinate or Pomona Grange is completed, the Master shall direct the Secretary of the National Grange to issue a charter on behalf of the National Grange for such Junior, Subordinate or Pomona Grange."*

As a result, acting on the National Grange Master's directions and under his authority, CSG Overseer Martha Stefenoni and CSG Executive Committee Chair Shirley Baker prevented these delegates from representing their Granges at the 2011 CSG Convention.

And in violation of the ***Digest of Laws of the National Grange section 4.6.9***, *"State Granges – State Granges are delegate bodies and shall be composed of two classes of members who are Fourth Degree members in good standing, namely: (A) Voting Members (Delegates) - Masters or alternates and their spouses, of active Subordinate and Pomona Granges within the jurisdiction of a State Grange shall be delegates to the Annual Meeting of a State Grange with the right to vote unless otherwise provided for in the By-Laws of a State Grange,"*

And in violation of the ***CSG Bylaws, Article XIII, section 13.5,*** *"Credentials – Every Grange who shall send representatives to any State Grange meeting must certify to the State Grange, on forms provided, who shall be its accredited representatives. Such representatives may be required to furnish identification that will attest to his or her identity."*

We hold the National Master responsible.

All of these charters were subsequently signed by the National Grange Master and were received at the CSG office on February 3, 2012, four months after they were submitted for approval.

CHARGE 5: INTERFERING WITH THE LAWFUL PROCEEDINGS OF THE CSG 2011 CONVENTION

On October 13, 2011, a motion by a CSG delegate asked that all members holding proper Credential Forms be approved to be seated at the Convention. The Parliamentarian for the CSG 2011 Convention was former CSG State Master Bill Booth. Brother Bill declared the motion to be in order, in accordance with ***CSG Bylaws, Article XIII Representation to State Grange Meetings, Section 13.2*** *"Registration of Voting Members - Each regular, selected or alternate voting Delegate shall be registered with the State Grange as the voting representative from their respective Granges. Should any of the above Delegates not be able to attend all of the State Grange meeting, it shall require a majority vote of the State Grange to allow the substitute Delegate to represent that Grange."*

With no authority granted by the ***Digest of Laws of the National Grange***, the National Grange Master directed officers of the CSG Executive Committee to demand that the CSG Master declare a motion from

the floor of the CSG 2011 Convention "out of order". The National Grange Master directed that unless the CSG Master admit error and call the motion out of order, he would be "immediately suspended by the National Master,"

In violation of his ***Oath of Obligation****, "I will conform to and abide by the laws of my State and Nation, and the Constitution, rules and regulations of the Grange at al levels… I will not knowingly wrong or defraud a Brother or Sister of the Order,"*

And in violation of his ***Oath of Installation and Instructions****, "I will perform all the duties appertaining to the office… I will support the Constitution and By-Laws of the National Grange… and I will inculcate a strict obedience to all laws and edicts emanating from the proper authority,"*

And in violation of *the* ***Master's Instructions****: "In performing the duties of the Master… You should be foremost in advocating the principles and carrying out the objects of our Order. To you all connected with your Grange will look for example."*

And in violation of the ***Digest of Laws of the National Grange section 10.1.1****, "The National Grange of the Order of Patrons of Husbandry of the United States desires to maintain the most cordial relations of fraternity and goodwill with all members wheresoever located, but all business relations belong to the individual membership of these organizations, and their action will be governed by such rules and regulations as their interests will dictate, provided they are in compliance with the Constitution, By-Laws and Laws of the National Grange,"*

And in violation of the ***Digest of Laws of the National Grange section 12.1.3****, "Questions of Grange Law or Usage arising in a State Grange or referred to the Master of a State Grange by any member thereof or the Master of a Subordinate or Pomona Grange; or brought on appeal from a ruling by a Master of Subordinate or Pomona Grange shall be decided by the Master of the State Grange having jurisdiction, subject, however, to an appeal therefrom to the Master of the National Grange."*

The CSG Master concurred and no appeal was made to the Master of the National Grange. The National Grange Master could have chosen a direct and fraternal approach to express his concern. He made no such effort,

In violation of *the* ***Declaration of Purposes of the Digest of the National Grange, sections 2.1.2, 2.2.3 and 2.3.2, and 2.6.1*** *"We heartily endorse the motto, "In essentials, unity; in non-essentials, liberty; in all things, charity…. We propose meeting together, talking together, working together and, in general, acting together for our mutual protection and advancement. We shall constantly strive to secure harmony, good will, and brotherhood, and to make our Order perpetual. We shall earnestly endeavor to suppress personal, local, sectional, and national prejudices, all unhealthy rivalry and all selfish ambition. Faithful adherence to these principles will ensure our mental, moral, social and material advancement… We are opposed to such spirit and management of any corporation or enterprise which tends to oppress people. We long to see antagonism between capital and labor removed by common consent, and by statesmanship worthy of an enlightened people… Our Fraternity, being agriculturally based, family oriented and dedicated to the pure principles of equality under Constitutional Law, we appeal to all good citizens for mutual cooperation and assistance toward reform that we may remove from our midst the last vestige of inequity and corruption. We believe that harmony, equitable compromise and earnest cooperation are essential to future success."*

We charge that The National Grange Master is woefully deficient in supporting the fundamental principles of fraternity, as set forth in the ***Declaration of Purposes*** and ***Digest of the National Grange of the Order of Patrons Of Husbandry***.

CHARGE 6: FAILURE TO PERFORM DUTIES FOR THE GOOD OF THE ORDER

The National Grange Master failed to demonstrate leadership and exercise his duty and authority to assist in resolving an issue brought to his attention regarding the proposed consolidation, sale and distribution of assets of the Springfield Grange.

Instead, the National Grange Master initiated a Grange trial process to punish the CSG Master, in total disregard for the complainants' stated desire for him to simply make a ruling overturning a motion by the CSG Executive Committee. This action disregarded and violated the remedies enjoined by the ***Preamble to the RULES AND REGULATIONS FOR GRANGE TRIALS, 12.2.0***, which state:

"Preamble- Recognizing that members of the Grange are subject to human feelings and that disputes do arise, it is earnestly hoped that the spirit of fraternity will cause each member contemplating filing a complaint to use every effort to resolve differences before exercising the rights set forth in this Trial Code. The good works that the Grange traditionally does should not be impeded by frivolous complaints to settle a personal affront. Let each member be large enough in spirit and integrity to obviate the use of this Trial Code."

And in violation of the ***Declaration of Purposes of the Digest of the National Grange, sections 2.1.2, 2.2.3 and 2.3.2, and 2.6.1*** *"We heartily endorse the motto, "In essentials, unity; in non-essentials, liberty; in all things, charity…. We propose meeting together, talking together, working together and, in general, acting together for our mutual protection and advancement. We shall constantly strive to secure harmony, good will, and brotherhood, and to make our Order perpetual. We shall earnestly endeavor to suppress personal, local, sectional, and national prejudices, all unhealthy rivalry and all selfish ambition. Faithful adherence to these principles will ensure our mental, moral, social and material advancement… We believe that harmony, equitable compromise and earnest cooperation are essential to future success."*

From the minutes of the April 21, 2012 meeting of the CSG Executive Committee, in regards to the trial, Complainant Inger Bevans explained: "The National Master had the authority to declare a ruling on the action instead of sending it to arbitration. That's what we were after. That is not what happened. He [the National Master] went that route [initiated the trial process]."

And from the trial transcript, Complainant Inger Bevans explained: "This [a ruling from the National Master] was our original desire as a ruling can only be requested by the State Master to the National Master. An e-mail received from our National Master on July 20th, 2011 states, 'rulings must be through the State Master and appeals must also be forwarded through the State Master. Complaints are the first step in the judicial process.'"

The National Grange Master is authorized to make rulings for the good of the order, avoiding the need for a protracted, divisive and expensive trial process. Contrary to the desire of the Complainants for a ruling, the National Grange Master made no such effort,

As provided for in the ***Digest of Laws of the National Grange 12.2.3****, "The Master of the level where the complaint is filed shall have the authority to offer mediation to the complainant and respondent or make a ruling on the laws of the Order to remedy the complaint. If either the complainant or respondents finds that mediation or ruling by the Master fails to solve the issue, the provisions as set forth in sections 12.2.16 through 12.2.33 will be placed into effect."*

Or as provided for in the ***Digest of Laws of the National Grange 12.1.3****, "Questions of Grange Law or Usage arising in a State Grange or referred to the Master of a State Grange by any member thereof or*

the Master of a Subordinate or Pomona Grange; or brought on appeal from a ruling by a Master of Subordinate or Pomona Grange shall be decided by the Master of the State Grange having jurisdiction, subject, however, to an appeal therefrom to the Master of the National Grange."

The Complaint was filed with the National Grange on August 13, 2011, giving opportunity and ample time for the National Grange Master to exercise his duty and authority to mediate or make a ruling. The Complaint, sent to The National Grange Master, asked only for a ruling:

COMPLAINT AGAINST THE MASTER OF THE CSG STATEMENT:
"We desire for the National Grange to find Bob McFarland out of order in his demand for the interest on any trust fund from the sale proceeds of Springfield Grange hall and to reverse his statement disapproving the whole consolidation."

The National Grange Master made no such effort, but instead initiated the disciplinary process.

The National Master never notified the CSG Master of a July 20, 2011 email communication between The National Grange Master and Complainant Inger Bevans,

In violation of the ***Digest of Laws of the National Grange section 4.14.1***, "*A copy of all official communications sent to any Grange or Grange member within the jurisdiction of a State Grange by the Officers, Directors, or employees of the National Grange, shall be sent to the Master of the State Grange having jurisdiction."*

Had the National Master notified the CSG Master, as required, there is a strong likelihood that the issue would have been resolved and a trial avoided. The CSG Master was unaware of a pending complaint until notified by the Arbitration Panel September 6, 2011.

The National Grange Master's abdication of his duty to deliver a ruling and, instead, to initiate the trial process, and his failure to properly communicate with the CSG Master indicate a bias against the CSG Master and a violation of the National Grange Master's ***Oath of Obligation***, *"I will not knowingly wrong or defraud a Brother or Sister of the Order or allow it to be done by another if within my power to prevent it.*"

Given the facts, any reasonable person would conclude that the National Grange Master's actions, inactions and lack of leadership in this matter were deliberate, resulting in a divisive, expensive and protracted Grange trial process, and the 60 day suspension of the CSG Master.

CHARGE 7: DISREGARDING INVESTIGATION AND RENEWING CHARGES

In violation of his ***Oath of Obligation, Oath of Installation and Instructions,*** the ***Declaration of Purposes of the Digest of the National Grange,*** and ***Digest of the National Grange, 12.2.0,***

On August 1, 2012, the same day the CSG Master returned from a 60 suspension, the National Grange Master filed new charges against Master McFarland. No attempt at resolution was offered by the National Master, in the spirit of fraternity and per the Digest of Laws, 12.2.0, except another request for the CSG Master to resign.

The new set of charges includes a rehash of old charges previously investigated by the CSG Executive Committee at the National Master's direction, which found no violations of Grange bylaws. On February 3, 2012, The National Grange Master emailed the CSG Executive Committee Chair Jon Luvaas, stating: "I am very concerned about the situation and do not want to create more opportunity for division by

having any further investigations done on behalf of the National Grange." With no new evidence to support these discredited old charges, the National Grange Master included them in his new charges of August 1, 2012.

The National Grange Master has exhibited a pattern of behavior for more than a year, strongly indicating a purpose to remove the duly elected Master of the CSG from office. This flagrant abuse of authority must cease.

CHARGE 8: DISREGARDING PRINCIPLES OF THE GRANGE

The Grange was born from an idea of Founder Oliver Kelley who envisioned to: "*Establish a local community association, where a group of people should be brought together as neighbors and friends, to discuss with candor and tolerance many local problems; to arrive at a clearer recognition of nearby needs and a mutual agreement on ways of meeting those needs; transforming stranger into neighbors, perhaps even enemies into friends, as local misunderstandings should be wiped away, prejudices removed, intelligence diffused and cooperation established*."

The principles and spirit of fellowship, charity, harmony, good will, and fraternity are inculcated throughout our bylaws, oaths, and written and unwritten work.

Oath of Obligation. "*I will not knowingly wrong or defraud a Brother or Sister of the Order or allow it to be done by another if within my power to prevent it. I will endeavor to be a true and faithful Patron of Husbandry, perform the duties enjoined in this Order, and aid others in the performance of the same."*

Master's Instructions. "*In performing the duties of Master of your Grange, I must impress upon your mind the importance of the position you hold. You should be foremost in advocating the principles and carrying out the objects of our Order. To you all connected with your Grange will look for example…"*

Declaration of Purpose.
"2.1.2, We heartily endorse the motto, "In essentials, unity; in non-essentials, liberty; in all things, charity."

"2.2.3, We propose meeting together, talking together, working together and, in general, acting together for our mutual protection and advancement. We shall constantly strive to secure harmony, good will, and brotherhood, and to make our Order perpetual. We shall earnestly endeavor to suppress personal, local, sectional, and national prejudices, all unhealthy rivalry and all selfish ambition. Faithful adherence to these principles will ensure our mental, moral, social and material advancement."

"2.6.1, We believe that harmony, equitable compromise and earnest cooperation are essential to future success."

Digest of Laws of the National Grange, 10.1.1. "*The National Grange of the Order of Patrons of Husbandry of the United States desires to maintain the most cordial relations of fraternity and goodwill with all members wheresoever located…"*

By continued interference in our affairs, the National Master has exceeded his authority and influence, and wronged and defrauded the members of the California State Grange. As a result, the work of our Executive Committee and Master have been severely compromised, and the fraternal spirit of our membership damaged.

We hold the National Grange Master responsible and find him woefully deficient in supporting the fundamental principles of the Grange, as set forth in our ***Oaths***, ***Declaration of Purpose***, ***Digest of the National Grange of the Order of Patrons Of Husbandry***, and our *written and unwritten work*.

STATEMENT

From his letter dated February 7, 2012 to the CSG Master, the National Grange Master writes:

"Integrity is a requirement of successful Grange leadership… Grange members do not expect their leaders to be perfect. However, they do expect them to maintain a high level of integrity, both in their actions as Grange leaders and in regard to protecting and growing the Order. I expect no more from you than I do from myself."

The National Grange Master must be held to his own prescribed standards of leadership.

The first Oath we take to become members of the Grange is our Oath of Obligation:

"I will not knowingly wrong or defraud a Brother or Sister of the Order or allow it to be done by another if within my power to prevent it. I will endeavor to be a true and faithful Patron of Husbandry, perform the duties enjoined in this Order, and aid others in the performance of the same. Should I knowingly or willfully violate this pledge, I will invoke upon myself suspension or expulsion from the Order."

The National Grange Master must be held to his solemn promise: "I will invoke upon myself suspension or expulsion from the Order." Such are the consequences he has invoked upon himself.

Therefore, we, the Complainants, desire that the National Grange Master be immediately suspended as the Master of the National Grange of the Order of Patrons of Husbandry for the remainder of his term.

However, in the spirit of fraternity, and in accordance with the *Digest of Laws of the National Grange, section 12.2.0*, "recognizing that members of the Grange are subject to human feelings and that disputes do arise, we earnestly hope that the spirit of fraternity will cause us to use every effort to resolve our differences and be large enough in spirit and integrity to obviate the use of the Trial Code."

For the Good of the Order, we hold open the hope that, as Brothers and Sisters, we may sit down together and resolve our differences in these and all matters involving the fraternal relations between the National and State Grange.

Respectfully submitted and signed on behalf of all Complainants:

_____ _____

Leo T. Bergeron, Past Master, California State Grange Date